

Federal Constitution

NOTES

Art. 1

The present Article without Clause (4) was inserted by Act 26/1963, section 4, in force from 16-09-1963 (i.e. when Malaysia was established). The original Article as it stood on Merdeka Day read as follows:

“1. (1) The Federation shall be known by the name of Persekutuan Tanah Melayu (in English the Federation of Malaya).

(2) The States of the Federation are Johore, Kedah, Kelantan, Negeri Sembilan, Pahang, Perak, Perlis, Selangor and Terengganu (formerly known as the Malay States) and Malacca and Penang (formerly known as the Settlements of Malacca and Penang).

(3) The territories of each of the States mentioned in Clause (2) are the territories of that State immediately before Merdeka Day.”.

Clause (2)

a. Act 59/1966, section 2, in force from 09-08-1965 (i.e. the date Singapore left Malaysia) amended Clause (2) by deleting therefrom paragraph (c) which read as follows:

“(c) the State of Singapore.”.

b. The present Clause was substituted by Act A354, section 2, in force from 27-08-1976. This Clause before its substitution by Act A354 was amended by Act 26/1963, section 4, in force from 16-09-1963 (i.e. when Malaysia was established) read as follows:

“(2) The States of the Federation shall be—

(a) the States of Malaya, namely, Johore, Kedah, Kelantan, Malacca, Negeri Sembilan, Pahang, Penang, Perak, Perlis, Selangor and Terengganu;

(b) the Borneo States, namely, Sabah and Sarawak; and

(c) the State of Singapore.”.

Clause (3)

The words “Subject to Clause (4),” were inserted by Act A206, section 11, in force from 01-02-1974.

Clause (4)

a. The original Clause which was added by Act A206, section 11, in force from 01-02-1974 (i.e. the date of the establishment of the Federal Territory of Kuala Lumpur) read as follows:

“(4) The territory of the State of Selangor shall exclude the Federal Territory established under the Constitution (Amendment) (No. 2) Act 1973.”.

b. Subsequently this Clause was amended by Act A566, subsection 2(1), in force from 01-02-1974, by inserting after the words “1973” the words “and the Federal Territory shall be a territory of the Federation.”.

c. Subsection 2(2) of Act A566 also provided in force from 01-02-1974 that—

“Any reference in the Constitution and any other written law to the Federation, Malaya, Malaysia, the States of the Federation, the States of Malaya, or West Malaysia, howsoever used, whether or not used in conjunction with or as part of another expression, shall be construed to include a reference to the Federal Territory, unless there is express provision to the contrary or there is something in the subject or context inconsistent with or repugnant to such construction.”.

d. This Clause was substituted by Act A585, section 11, in force from 16-04-1984.

e. This Clause was again substituted by Act A1095, section 11, in force from 01-02-2001.

Art. 2

See Art. 22, 133(3) & 159(4)(bb).

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Art. 3

Clause (2)

- a. The words “States not having a Ruler” substituted for the words “Malacca and Penang” by Act 26/1963, subsection 7(1), in force from 16-09-1963.
- b. The words “religion of Islam” substituted for the words “Muslim religion” by Act A354, section 45, in force from 27-08-1976.

Clause (3)

- a. Act 26/1963, subsection 7(2), in force from 16-09-1963, substituted the words “Penang and Singapore” for the words “and Penang”. Act 59/1966, section 2, in force from 09-08-1965, restored the original version “and Penang”.
- b. The words “religion of Islam” substituted for the words “Muslim religion” by Act A354, section 45, in force from 27-08-1976.
- c. The words “States of Malacca, Penang, Sabah and Sarawak” substituted for the words “States of Malacca and Penang” by Act A354, section 3, in force from 27-08-1976.
- d. *See* Art. 5 of the Constitutions of the States of Malacca and Penang.

Clause (5)

- a. Added by Act A206, section 11, in force from 01-02-1974 and amended by Act A354, section 45, in force from 27-08-1976, substituted the words “religion of Islam” for the words “Muslim religion” and the word “Islamic” for the word “Muslim”.
- b. The words “Territories of Kuala Lumpur and Labuan” substituted for the word “Territory” by Act A585, section 20, in force from 16-04-1984.
- c. The words “Kuala Lumpur, Labuan and Putrajaya” substituted for the words “Kuala Lumpur and Labuan” by Act A1095, section 12, in force from 01-02-2001.

Art. 4

Clause (1): See Art. 159A.

Clause (3)

The words “in proceedings for a declaration that the law is invalid on that ground or” were inserted by Act 26/1963, section 40, in force from 16-09-1963.

Clause (4)

- a. Added by Act 26/1963, section 40, in force from 16-09-1963.
- b. The word “Federal” substituted for the word “Supreme” by Act A885, section 2, in force from 24-06-1994.

Art. 5

Clause (1): See Art. 149(1).

Clause (2)

The words “a High Court” substituted for the words “the Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.

Clause (4)

- a. Proviso added by Act A354, section 4, in force from 31-08-1957.
- b. Additional provisos added by Act A704, section 2, in force from 10-06-1988.

- (b) it imposes such restrictions as are mentioned in Clause (2) of Article 10 but those restrictions were not deemed necessary or expedient by Parliament for the purposes mentioned in that Article.

(3) The validity of any law made by Parliament or the Legislature of any State shall not be questioned on the ground that it makes provision with respect to any matter with respect to which Parliament or, as the case may be, the Legislature of the State has no power to make laws, except in proceedings for a declaration that the law is invalid on that ground or—

- (a) if the law was made by Parliament, in proceedings between the Federation and one or more States;
- (b) if the law was made by the Legislature of a State, in proceedings between the Federation and that State.

(4) Proceedings for a declaration that a law is invalid on the ground mentioned in Clause (3) (not being proceedings falling within paragraph (a) or (b) of the Clause) shall not be commenced without the leave of a judge of the Federal Court; and the Federation shall be entitled to be a party to any such proceedings, and so shall any State that would or might be a party to proceedings brought for the same purpose under paragraph (a) or (b) of the Clause.

PART II

FUNDAMENTAL LIBERTIES

Liberty of the person

5. (1) No person shall be deprived of his life or personal liberty save in accordance with law.

(2) Where complaint is made to a High Court or any judge thereof that a person is being unlawfully detained the court shall inquire into the complaint and, unless satisfied that the detention is lawful, shall order him to be produced before the court and release him.

(3) Where a person is arrested he shall be informed as soon as may be of the grounds of his arrest and shall be allowed to consult and be defended by a legal practitioner of his choice.

(4) Where a person is arrested and not released he shall without unreasonable delay, and in any case within twenty-four hours (excluding the time of any necessary journey) be produced before a magistrate and shall not be further detained in custody without the magistrate's authority:

Provided that this Clause shall not apply to the arrest or detention of any person under the existing law relating to restricted residence, and all the provisions of this Clause shall be deemed to have been an integral part of this Article as from Merdeka Day:

Provided further that in its application to a person, other than a citizen, who is arrested or detained under the law relating to immigration, this Clause shall be read as if there were substituted for the words "without unreasonable delay, and in any case within twenty-four hours (excluding the time of any necessary journey)" the words "within fourteen days":

And provided further that in the case of an arrest for an offence which is triable by a Syariah court, references in this Clause to a magistrate shall be construed as including references to a judge of a Syariah court.

(5) Clauses (3) and (4) do not apply to an enemy alien.

Slavery and forced labour prohibited

6. (1) No person shall be held in slavery.

(2) All forms of forced labour are prohibited, but Parliament may by law provide for compulsory service for national purposes.

(3) Work or service required from any person as a consequence of a conviction or a finding of guilt in a court of law shall not be taken to be forced labour within the meaning of this Article, provided that such work or service is carried out under the supervision and control of a public authority.

(4) Where by any written law the whole or any part of the functions of any public authority is to be carried on by another public authority, for the purpose of enabling those functions to be performed the employees of the first-mentioned public authority shall be bound to serve the second-mentioned public authority,

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Art. 6

Clause (3)

The present Clause was inserted by Act A1130, section 2, in force from 28-09-2001, and replaced the earlier Clause which read as follows:

“(3) Work incidental to the serving of a sentence of imprisonment imposed by a court of law shall not be taken to be forced labour within the meaning of this Article.”.

Clause (4)

Added by Act A354, section 5, in force from 27-08-1976.

and their service with the second-mentioned public authority shall not be taken to be forced labour within the meaning of this Article, and no such employee shall be entitled to demand any right from either the first-mentioned or the second-mentioned public authority by reason of the transfer of his employment.

Protection against retrospective criminal laws and repeated trials

7. (1) No person shall be punished for an act or omission which was not punishable by law when it was done or made, and no person shall suffer greater punishment for an offence than was prescribed by law at the time it was committed.

(2) A person who has been acquitted or convicted of an offence shall not be tried again for the same offence except where the conviction or acquittal has been quashed and a retrial ordered by a court superior to that by which he was acquitted or convicted.

Equality

8. (1) All persons are equal before the law and entitled to the equal protection of the law.

(2) Except as expressly authorized by this Constitution, there shall be no discrimination against citizens on the ground only of religion, race, descent, place of birth or gender in any law or in the appointment to any office or employment under a public authority or in the administration of any law relating to the acquisition, holding or disposition of property or the establishing or carrying on of any trade, business, profession, vocation or employment.

(3) There shall be no discrimination in favour of any person on the ground that he is a subject of the Ruler of any State.

(4) No public authority shall discriminate against any person on the ground that he is resident or carrying on business in any part of the Federation outside the jurisdiction of the authority.

(5) This Article does not invalidate or prohibit—

(a) any provision regulating personal law;

(b) any provision or practice restricting office or employment

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Art. 8

See Art. 12 & 161A(5).

Clause (2)

The words “descent, place of birth or gender” substituted for the words “descent or place of birth” by Act A1130, section 3, in force from 28-09-2001.

Clause (5)(c)

The words “Malay Peninsula” substituted for the word “Federation” by Act 26/1963, section 70, in force from 16-09-1963.

Clause (5)(f)

See section 6, Armed Forces Act 1972 [*Act 77*].

connected with the affairs of any religion, or of an institution managed by a group professing any religion, to persons professing that religion;

- (c) any provision for the protection, well-being or advancement of the aboriginal peoples of the Malay Peninsula (including the reservation of land) or the reservation to aborigines of a reasonable proportion of suitable positions in the public service;
- (d) any provision prescribing residence in a State or part of a State as a qualification for election or appointment to any authority having jurisdiction only in that State or part, or for voting in such an election;
- (e) any provision of a Constitution of a State, being or corresponding to a provision in force immediately before Merdeka Day;
- (f) any provision restricting enlistment in the Malay Regiment to Malays.

Prohibition of banishment and freedom of movement

9. (1) No citizen shall be banished or excluded from the Federation.

(2) Subject to Clause (3) and to any law relating to the security of the Federation or any part thereof, public order, public health, or the punishment of offenders, every citizen has the right to move freely throughout the Federation and to reside in any part thereof.

(3) So long as under this Constitution any other State is in a special position as compared with the States of Malaya, Parliament may by law impose restrictions, as between that State and other States, on the rights conferred by Clause (2) in respect of movement and residence.

Freedom of speech, assembly and association

10. (1) Subject to Clauses (2), (3) and (4)—

- (a) every citizen has the right to freedom of speech and expression;

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Art. 9

See Art. 149(1).

Clause (2)

- a. The words “Subject to Clause (3) and to any law relating to the security of the Federation or any part thereof” substituted for the words “Subject to any restriction imposed by any law relating to the security of the Federation” by Act 26/1963, subsection 60(1), in force from 16-09-1963.
- b. *See* Art. 4(2)(a).

Clause (3)

- a. Added by Act 26/1963, subsection 60(1), in force from 16-09-1963. A proviso which was added at the same time was repealed by Act 59/1966, section 2, in force from 19-09-1966. As it stood on the date of repeal, the proviso read as follows:

“Provided that no restriction on the right of movement between the State of Singapore and the States of Malaya shall be imposed by virtue of this Clause except by a law relating to labour or education or to any matter in respect of which, because of the special position of the State of Singapore, it appears to Parliament to be desirable to prevent the enjoyment of rights both in the State of Singapore and in the States of Malaya.”.

- b. Applies to laws passed before Malaysia Day so as to impose restrictions with effect from Malaysia Day—*See* subsection 60(2) of Act 26/1963.
- c. The proviso was amended by the addition of the words “and any such restriction shall apply reciprocally to the States of Malaya and the State of Singapore” at the end of the proviso by Act 19/1964, section 2, in force from 30-07-1964.

(b) all citizens have the right to assemble peaceably and without arms;

(c) all citizens have the right to form associations.

(2) Parliament may by law impose—

(a) on the rights conferred by paragraph (a) of Clause (1), such restrictions as it deems necessary or expedient in the interest of the security of the Federation or any part thereof, friendly relations with other countries, public order or morality and restrictions designed to protect the privileges of Parliament or of any Legislative Assembly or to provide against contempt of court, defamation, or incitement to any offence;

(b) on the right conferred by paragraph (b) of Clause (1), such restrictions as it deems necessary or expedient in the interest of the security of the Federation or any part thereof or public order;

(c) on the right conferred by paragraph (c) of Clause (1), such restrictions as it deems necessary or expedient in the interest of the security of the Federation or any part thereof, public order or morality.

(3) Restrictions on the right to form associations conferred by paragraph (c) of Clause (1) may also be imposed by any law relating to labour or education.

(4) In imposing restrictions in the interest of the security of the Federation or any part thereof or public order under paragraph (a) of Clause (2), Parliament may pass law prohibiting the questioning of any matter, right, status, position, privilege, sovereignty or prerogative established or protected by the provisions of Part III, Article 152, 153 or 181 otherwise than in relation to the implementation thereof as may be specified in such law.

Freedom of religion

11. (1) Every person has the right to profess and practise his religion and, subject to Clause (4), to propagate it.

(2) No person shall be compelled to pay any tax the proceeds of which are specially allocated in whole or in part for the purposes of a religion other than his own.